

CAP IDIQ

CONTRACT ADMINISTRATION PLAN (CAP) FOR FIXED PRICE, INDEFINITE DELIVERY, CONTRACTS
In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document.

The office or individual designated as having responsibility should be contacted for any questions, clarifications or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:
 - a. All pre-award duties such as solicitation, negotiation and award of contracts.
 - b. Any information or questions during the pre-award stage of the procurement.
 - c. Freedom of Information inquiries.
 - d. Changes in contract terms and/or conditions.
 - e. Post award conference.
2. The Contract Administration Office (CAO) is responsible for matters specified in FAR 42.302, except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.
3. The paying office is responsible for making payment of proper invoices after acceptance is documented.
4. The Ordering Officer is responsible for:
 - a. Requesting, obtaining and evaluating proposals for orders to be issued.
 - b. Select the most advantageous offer to the Government for individual Task Orders in accordance with contract provisions. Determining that the price/estimated cost of the order is fair and reasonable for the effort proposed.
 - c. Obligating the funds by issuance of the delivery order/task order.
 - d. Authorizing the contractor to begin performance.
 - e. Providing subcontract approval.
 - f. Monitoring direct costs on orders issued.

NOTE: The PCO and the Ordering Officer may be the same individual, but in no case shall the COR perform the duties of the Ordering Officer.

The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

g. Technical Interface

- (1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract or order. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.
- (2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

h. Contract Surveillance

- (1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the

terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

- (2) The COR shall monitor the contractor's performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.
- (3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.
- (4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

i. Invoice Review and Approval/Inspection and Acceptance

- (1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.
- (2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor.
- (3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.
- (4) Upon completion of all services under the contract, the COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

j. Contract Modifications/Orders Under Indefinite Delivery Contracts.

- (1) The COR is responsible (if necessary) for developing the statement of work for tasking orders, change orders, or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.
- (2) The COR shall provide available and relevant Past Performance information with each request for new Task Orders. The COR shall review and evaluate the contractor's proposal and furnish comments and recommendations.

k. Administrative Duties

- (1) The COR is responsible for taking appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.
- (2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.
- (3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

l. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to ensure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

- m. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.
- n. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.
- o. Written Report/Contract Completion Statement.
 - (1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor. For contracts where delivery orders are issued, one consolidated report which addresses all actions under the contract may be submitted.
 - (2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.
 - (3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:

- a. All pre-award information, questions, or data;
- b. Freedom of Information inquiries;
- c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
- d. Arranging the post award conference (See FAR 42.503).

Name: Samantha Ballance
Address: NAVSUP FLC Norfolk
1968 Gilbert Street Suite 600
Norfolk, VA 23511

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Name: James Keegan
Address: NAVSUP FLC
Norfolk 1968 Gilbert
Street, Suite 600
Norfolk, VA 23511-3392

3. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

Name: TO BE COMPLETED AT TASK ORDER
Address:
Phone:.

4. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:

- a. Liaison with personnel at the Government installation and the contractor personnel on site;
- b. Technical advice/recommendations/clarification on the statement of work;
- c. The statement of work for delivery/task orders placed under this contract.
- d. An independent government estimate of the effort described in the definitized statement of work;
- e. Quality assurance of services performed and acceptance of the services or deliverables;

- f. Government furnished property;
- g. Security requirements on Government installation;
- h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/or
- i. Certification of invoice for payment

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved.

THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

Name: NAS Key West: Shannon Cox - shannon.c.cox.civ@us.navy.mil
NAVSAT Norfolk/JEB Little Creek: Lachana Hill - lachana.j.hill.civ@us.navy.mil
NSA Philadelphia/PNYA/NSA Mechanicsburg: Jewanna Owens - jewanna.f.owens.civ@us.navy.mil
NAVSTA Great Lakes: Greg Powroznik - greg.m.powroznik.civ@us.navy.mil

5. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligating the funds by issuance of the delivery/task order;
- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- b. Type of order issued is limited by this contract to ----- pricing arrangements;
- c. No order shall be placed in excess of \$43,050,000 without the prior approval of the PCO; and/or
- d. No order shall be placed with delivery requirements in excess of \$43,050,000

Name: TBD
Address:
Phone:
Email:

MIN AND MAX MINIMUM AND MAXIMUM QUANTITIES (FFP, SINGLE AWARD IDIQ) (SEP 2015)
As referred to in paragraph (b) of the "Indefinite Quantity" clause of this contract, the total contract minimum price is a total of \$1,000.00 worth of orders at the contract unit price(s).

The contract maximum price for all seven sites is a total of \$43,050,000.
Period Contract Maximum Amount
Base Period \$9,448,000.00
Ordering Period I \$7,316,000.00
If FAR 52.217-8 is exercised \$3,833,000.00

The contract maximum price for NORFOLK is a total of \$23,000,000.00.
Period Contract Maximum Amount
Base Period \$5,000,000.00
Ordering Period I \$3,900,000.00
If FAR 52.217-8 is exercised \$2,050,000.00

The contract maximum price for KEY WEST is a total of \$2,500,000.00.
Period Contract Maximum Amount
Base Period \$565,000.00

Ordering Period I \$424,000.00
If FAR 52.217-8 is exercised \$221,000.00\

The contract maximum price for PNYA is a total of \$2,000,000.00.
Period Contract Maximum Amount
Base Period \$443,000.00
Ordering Period I \$342,000.00
If FAR 52.217-8 is exercised \$175,000.00

The contract maximum price for PHILADELPHIA is a total of \$800,000.00.
Period Contract Maximum Amount
Base Period \$170,000.00
Ordering Period I \$136,000.00
If FAR 52.217-8 is exercised \$72,000.00

The contract maximum price for GREAT LAKES is a total of \$5,000,000.00.
Period Contract Maximum Amount
Base Period \$1,110,000.00
Ordering Period I \$845,000.00
If FAR 52.217-8 is exercised \$450,000.00

The contract maximum price for MECHANICSBURG is a total of \$950,000.00.
Period Contract Maximum Amount
Base Period \$210,000.00
Ordering Period I \$159,000.00
If FAR 52.217-8 is exercised \$85,000.00

The contract maximum price for LITTLE CREEK is a total of ~~\$950,000.00~~ \$8,800,000.00
Period Contract Maximum Amount
Base Period ~~\$8,800,000.00~~ \$1,950,000.00
Ordering Period I ~~\$1,950,000.00~~ \$1,510,000.00
If FAR 52.217-8 is exercised \$780,000.00

FUNDING FOR IDIQ USE OF MINIMUM FUNDING UNDER IDIQ CONTRACTS - TASK ORDER NOTE (SEP 2015):

It is anticipated that FY27 funds on this task order will be obligated on the underlying IDIQ contract to cover the guaranteed minimum. Accordingly, such FY 26 funds are on this task order in accordance with the decision of the Government Accountability Office, "Interagency Agreements – Obligation of Funds under an Indefinite Delivery, Indefinite Quantity Contract, B 308969, May 31, 2007." This GAO decision held that, if task order(s) issued in the fiscal year in which the underlying IDIQ contract is awarded are not sufficient to satisfy the entire guaranteed minimum, said funds obligated for the guaranteed minimum must be used for task order(s) issued in the following fiscal year(s) until the guaranteed minimum is satisfied. The contract's guaranteed minimum is satisfied by the issuance of this task order.